European Commission - Press release

Commission clears JD Sports acquisition of Courir subject to conditions

Brussels, 22 October 2024

The European Commission has approved, under the EU Merger Regulation, the proposed acquisition of **Groupe Courir SAS** ('Courir') by **JD Sports Fashion Plc Group** ('JD Sports'). The approval is conditional upon full compliance with the commitments offered by the parties.

The Commission's investigation

The Commission's investigation showed that the transaction, as initially notified, would have reduced competition in the **retail** markets for: (i) **leisure and performance sports footwear and apparel** in **Portugal**; and (ii) **leisure sports footwear** in certain local markets **in France**. The Commission found that the online and offline sales constrain one another and form part of the same relevant market. Competitive pressure from online sales was reflected in the Commission's assessment of the transaction's effects at local level.

The Commission found that the transaction would have resulted in **high combined market shares** as well as **high concentration** levels in several local markets. The Commission also found that, after the merger, there **would not be enough alternative competitors** to exert sufficient competitive pressure on the merged entity. This would have led to higher prices and less choice for consumers in the affected markets.

The proposed remedies

To address the Commission's competition concerns, the parties offered to divest **all Courir stores in Portugal and several stores in certain areas of France to Snipes**, a direct competitor focusing on the retail supply of leisure sports goods. These commitments **fully address the competition concerns** identified by the Commission, by ensuring that there will be sufficient competition and choice in the affected markets.

In today's decision, the Commission has approved **Snipes as a suitable purchaser** of the divested businesses after finding that it fulfils all the relevant criteria. In a separate procedure, the Commission will approve the terms of sale and assess whether these are in line with the proposed commitments. Pursuant to the latter, JD Sports can only implement the acquisition of Courir following the Commission's approval.

Following the positive feedback received during the market test, the Commission concluded that the transaction, as modified by the commitments, **would no longer raise competition concerns**.

The clearance decision is conditional upon full compliance with the commitments. Under the supervision of the Commission, an independent trustee will monitor their implementation.

Companies and products

JD Sports, headquartered in the UK, is a sports goods retailer, focused on sports apparel and footwear. It operates worldwide under various retail banners (both online and via over 3,300 physical stores) and has a limited wholesale business. It is ultimately owned by Pentland Group Holdings Limited.

Courir, headquartered in France, is active in the retail supply of sportswear, including footwear, apparel, and accessories. In Europe, Courir operates over 300 stores, located in Belgium, Denmark, France, Luxembourg, the Netherlands, Portugal and Spain. It also sells online in all EU countries except for Malta. It is ultimately owned by Equistone.

For More Information

The transaction was first notified to the Commission on 21 June 2024, but the parties withdrew their

notification on 7 August 2024. The parties renotified the transaction to the Commission on 3 September 2024.

The Commission has the duty to assess mergers and acquisitions involving companies with a turnover above certain thresholds (see Article 1 of the EU Merger Regulation) and to prevent concentrations that would significantly impede effective competition in the European Economic Area or any substantial part of it.

The vast majority of notified mergers do not pose competition problems and are cleared after a routine review. From the moment a transaction is notified, the Commission generally has a total of 25 working days to decide whether to grant approval (Phase I) or to start an in-depth investigation (Phase II). If commitments are proposed in Phase I, the Commission has 10 additional working days, bringing the total duration of a Phase I case to 35 working days, such as in this case.

More information will be available on the Commission's competition website, in the public case register under the case number M.11159.

IP/24/5403

Quote(s):

"We had concerns that the acquisition of Courir by JD Sports could affect the retail markets for sports footwear in France and Portugal. The divestiture of certain Courir stores to Snipes will preserve competition in these markets, to the benefit of consumers in terms of prices, quality and choice."
Margrethe Vestager, Executive Vice-President in charge of competition policy - 22/10/2024

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